



NIT No. SAIL/C&IT/RFQ/CMC/SERVERS/2018 dated 27-07-2018

Request for Quotation (RFQ)

Open Tender for Comprehensive Maintenance Contract (CMC) for Server Systems (EPMS & PMS) at SAIL Corporate Office New Delhi

NIT No. SAIL/C&IT/RFQ/CMC/SERVERS/2018 dated 27-07-2018



स्टील अथॉरिटी ऑफ इण्डिया लिमिटेड
STEEL AUTHORITY OF INDIA LIMITED

Computer & Information Technology
19th Floor, Scope Minar, Laxmi Nagar, Delhi-110092

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Overview

- ✓ Steel Authority of India Ltd. (SAIL) is a Government of India Enterprise having „MAHARATNA“ company status. It is the largest producer of Steel in India having Steel Plants and its own captive mines across India. It produces various Iron and Steel products like Pig Iron, Flat & Long Steel Products and Special Steels. SAIL is accredited with various quality certificate viz. ISO-9001-2008, IS-14001, OHSAS-18001, SA-8000 etc. SAIL recorded sales turnover of Rs. 49,180 crore for FY 2016-17.
- ✓ SAIL has online Executive Performance Management System (EPMS) for all its integrated steel plants, subsidiaries, marketing units etc. SAIL also has online Project Monitoring System (PMS) for entering data for new AMR Projects Expansion data from all Plants/units. Both the server systems are installed at SAIL Corporate Office, New Delhi and the clients are spread over geographically at different locations within the Plants & outside Plant and at various cities & towns in India. The clients have access to these systems (EPMS & PMS) through web based system. For both the server systems, presently SAILNET is being used as network infrastructure, which uses leased line, ISDN, VSAT & MPLS-VPN modes of connectivity.
- ✓ Presently, SAIL intends to engage the services of an experienced service provider, which is technically & financially capable to take over and continue Comprehensive Maintenance Contract (CMC) for the above mentioned server systems (EPMS & PMS) on 24x7x365 basis. **SAIL hereby invites offers from the eligible tenderers (Annexure-I)** in this regard.
- ✓ EPMS system predominantly consists of HP servers and SAN Storages (with load balancer from Radware and Server Aggregation Switch from CISCO) whereas PMS system consists of IBM servers. The detailed list of equipment for individual server systems along with the Scope of Work of CMC is given in **Annexure-III A**.
- ✓ The Comprehensive Maintenance Contract (CMC) shall consist of comprehensive preventive as well as breakdown maintenance by the service provider along with software support. This will include carrying out all necessary repairs, provisions for supplies/fittings and replacement of defective parts/components viz. Mother board/ RAM/ Hard disk/ Power modules/ LCD Panel etc. The service provider shall repair or replace all parts of Hardware with existing make & specification same or better, free of cost during CMC period. Replaced parts/components shall become the property of the service provider.
- ✓ The contract period will be for 1 (one) year to be reckoned from the date of handing over the system to the service provider as per following details :-

Server System	Tentative date of handing over the Server System to the service provider	Remarks on Service Duration
Executive Performance management System (EPMS)	10 th November 2018	12 months (10 th November 2018 to 9 th November 2019)
Project Monitoring System (PMS)	10 th November 2018	12 months (10 th November 2018 to 9 th November 2019)

SAIL, however, reserves the right to extend the contract for a further period of one year on same terms and conditions. Further, SAIL may extend the contract for one or more quarters to ensure uninterrupted care & services to both the systems pending the finalization of fresh contract.



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- ✓ Tenderers are requested to read carefully the instructions contained in the RFQ and submit their offer in line with the requirement indicated. The offer is required to be submitted as follows:

Tender to be submitted at / Tender sent by Post/ Courier to be addressed to	STEEL AUTHORITY OF INDIA LIMITED, Computer & Information Technology(C&IT), Integrated Office Complex, Ispat Bhawan, 1 st Floor, Lodhi Road, <u>New Delhi-110 003</u> (India). <i>(Envelope containing quotation should be clearly subscribed with the NIT reference no, due date of submission, due date of opening)</i>
Due date of submission of Tender (EMD, Techno Commercial Bid and Price Bid)	On or before 24-08-2018 at 15:00 Hrs (IST)
Due date for opening of Tender (EMD & Techno Commercial Bid)	On or before 24-08-2018 at 15:30 Hrs (IST)
Validity of the Offer for order placement	Techno-commercial Bid shall remain valid for minimum 60 days from the date of opening of Techno-commercial Bid. <i>Price Bid shall remain valid for acceptance for 30 days from the date of price-discovery either through online Reverse Auction (RA) or by opening of sealed Price- Bid at the option of SAIL.</i>

- ♦ Summary of other relevant details of the RFQ is as under:

1.1	Service required	Comprehensive Maintenance of EPMS and PMS server systems as per detailed Scope of Work (SOW)
1.2	Contract Period	1 (One) year from the date of commencement of contract. Extendable by one more year at option of SAIL.
1.3	Scope of Work, Infrastructure & Workflow, Network Architecture	As detailed in RFQ
1.4	Price-discovery	Will be done either through online Reverse Auction OR by opening of sealed Price-Bid already submitted while submitting Techno-Commercial Bid. <i>The price discovered and finalized (through RA or otherwise) shall remain FIRM till successful completion of contract.</i>
1.5	Payment Terms	As detailed in RFQ
1.6	Penalty Provisions	As detailed in RFQ, penalty provisions exist for: a. Downtime b. Delay in replacing faulty spare parts c. Not performing monthly PM as schedule Total quarterly penalty for a+b+c shall not exceed 10% of total quarterly CMC charges payment

**Eligibility Criteria and Supporting Documents****Annexure – I**

S.No.	Eligibility Criteria	Documents to be submitted
1.	Tenderer should be registered under Indian Companies Act	Copy of Certificate of Incorporation/ Registration.
2.	Tenderer should be ISO certified (9000 or higher certification)	Copy of valid Certificate(s)
3.	Tenderer should have an AMC/CMC experience of maintaining RISC/EPIC based servers in Unix environment under Data center Setup* in any of the 5 years (the years being 2013-2014 to 2017-18) of PSUs/ Central Government/ State Government/ Public Sector Banks/Corporate Bodies (incorporated under Indian companies Act) *Data center setup will mean a setup equivalent to a setup as envisaged in Scope of Work indicated at Annexure III	Copy of orders / agreements Two separate and successfully completed work orders of RISC/EPIC based servers in Unix environment under Data center Setup* of minimum annual value Rs.12.5 Lac each in any of the previous 5 years.(the years being 2013-2014 to 2017-18).Running / on-going work orders are also acceptable provided the same is in operation for more than one year . OR One completed order of annual value Rs.20 Lac or more of RISC/EPIC based servers in Unix environment under Data center Setup* . Running / on-going work orders are also acceptable provided the same is in operation for more than one year. In proof of above the party should produce a letter of satisfactory performance from the competent authority of the organization where they have entered into an AMC contract.
4.	Tenderer should have in-house service center or Technical Support office at Delhi/NCR (The technical support facility can be inspected by SAIL C&IT Team at any time during the evaluation process / before awarding the contract/even after award of work)	Self-declaration * or self attested papers.
5.	A) Tenderer should have a pool of at least 50+ qualified maintenance engineers (including 10+ server level qualified maintenance engineers) on their rolls. B)Tenderer be registered with the PF authorities	A)Self-declaration* or self attested papers with their qualification, experience & duration of service B) EPF Code No. with copy of Registration certificate
6.	Letter from respective OEMs for back-to-back support from HP (for item 2-5, 7-15 of Annexure-III C i.e. HP items),from IBM (for Items 17-22 of Annexure- III C i.e. IBM items), from CISCO(for Item1 of Annexure- III C) & from Radware (for Item6 of Annexure- III C) needs to be provided. The successful vendor shall provide back-to-back agreement letter covering entire contract duration from HP, IBM,CISCO& Radware after award of contract.	Letter from OEMs for back-to-back support (to be furnished along with Techno-commercial Bid)
7.	Tenderer should not have been black-listed by any PSU /government organization as on the last date of bid submission.	Self-declaration* or self attested papers.
8.	Tenderer should have annual turnover of not less than Rs.6 Cr during each of the preceding 3 financial years (2014-15, 2015-16, 2016-17)	Duly audited Profit / Loss statements, Balance Sheets along with the auditor's report.

Note:

~ All dates to be reckoned with Last date of submission of bids (including extension(s) thereof, if any) for evaluation purpose. All documents / certificates submitted should be valid as on this date.

~ Failure to furnish all information required as per the Bid Documents and any information being found incorrect or false or misleading shall be liable to rejection of the bid at any time and cancellation of award, even if order has been placed.

~ Self Declaration / self-attestation wherever mentioned has to be done by authorized signatory of tenderer.

~ Authority Letter in favour of Authorised signatory.

Letter of Authorisation alongwith copy of Board Resolution wherever applicable.



INSTRUCTIONS TO TENDERERS

Annexure-II

1. DOWNLOADING OF TENDER DOCUMENT

The prospective tenderers can download the tender document from SAIL tender site (<https://www.sailtenders.co.in>) or Central Govt. Public procurement Portal (www.eprocure.gov.in). The Tender Document published on the website is the authorized version of SAIL. It should be ensured that anything downloaded from the SAIL website is virus-checked. SAIL accepts no liability for any loss or damage caused by downloading of documents from the site. Offers submitted with any (intentional/unintentional) changes or deviation/difference in the tender documents are liable to be rejected. In case of any dispute, the tender documents as displayed on the website shall be treated as valid document.

Any changes in tender will be notified in SAIL Tender website (<https://www.sailtenders.co.in>) or Central Govt. Public procurement Portal (www.eprocure.gov.in). The amendment thus put on the website, will be binding on all tenderers.

TENDERERS ARE THEREFORE ADVISED TO VISIT THE WEBSITE AT REGULAR INTERVALS.

Note: The Tenderer is expected to examine all instructions, proforma, forms, terms and specifications in the RFQ. Failure to furnish all information required under the RFQ or submission of a bid not substantially responsive to the RFQ in every respect will be at the Tenderer's risk and may result in the rejection of the bid.

2. PREPARATION AND SUBMISSION OF BIDS

- A) The tenderer shall submit the bid in a sealed envelope in the tender box kept at the office of the Steel Authority of India Limited, Computer & Information Technology Department (C&IT), Ispat Bhawan (1st Floor), Lodi Road, New Delhi - 110003 during office hours between 09:00 AM to 05:30 PM (excluding holidays) during the period starting from 03.08.2018 to last date and time of bid submission.

Last Date & Time of Bid submission:

Bids will be received upto 15:00 HRS on 24.08.2018.

- B) Tenders submitted after the date and time of submission stipulated above will not be accepted.
- C) Tenders may also be delivered by hand/courier so as to reach the address before the last date & time of bid submission stipulated above. SAIL takes no responsibility for bids received late. Telex, Facsimile & e-mailing bids will not be considered.
- D) Tenders should be submitted in **three part Bids-**

Part I) Earnest Money Deposit (EMD):

EMD shall be submitted in the form of Bank Demand Draft of Rs.15,000/- (Fifteen Thousand only) drawn in favor of Steel Authority of India Limited, New Delhi. No interest shall be paid on the EMD. **Submission of EMD shall be a precondition for opening/evaluation of Techno – Commercial Bid (Part – II).**

EMD may be accepted in the form of demand draft, pay order, Banker's Cheque or Bank Guarantee (BG) from any Scheduled Commercial Bank except Co-operative and Gramin Bank. Earnest Money can also be in the form of TT remittance / online transfer – NEFT, RTGS, SWIFT. The proof of such transfer / transaction needs to be submitted with the offer in the



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 envelope titled Earnest Money Deposit. The tenderers shall be asked to submit EM in a separate envelope and not to enclose the same with any part of the quotation. No request for adjustment of earlier dues in place of EM shall be entertained. **EMD will not be accepted in cash. Electronic mode of payment is allowed.**

In case of online remittance of EMD the same may be remitted to:

(MICR code)	IFSC Code	Account Number
110002050 <i>(9 digit code no. of the bank & branch)</i>	SBIN0006564	10113030159

In this respect tenderers who send online remittance must ensure that EMD is credited in SAIL's Bank A/C. Confirmation will be required before the opening of the bid. Failure on the part of tenderer to ensure the receipt of EMD by SAIL will result in summarily rejecting the bid submitted by tenderer.

In the event the tender of any party is rejected during the course of Techno-Commercial Scrutiny and Evaluation, the EMD shall be returned to such tenderer within seven days from the date of rejection of its offer.

In case of unsuccessful tenderer the EMD shall be returned within thirty days from determination of L-1 tenderer.

Small Scale Units / Ancillary Units and Public Sector Units/ Govt. Undertakings and Co-operative Societies, etc., are exempted from submission of EMD. As per Government Policy for SSI Units, the exemption from submission of EMD is to be granted only for the items for which it is registered. In order to avail the exemption, the tenderer shall be required to substantiate his claim through Documentary evidence regarding their status along with Part I document.

Part II) Techno-Commercial Bid:

Technical Bid -As part of the technical bid, the tenderers are required to submit acceptance of Scope of Work along with the technical details/experience to carry out the job.

In addition a brief outline on methodology of support to meet the tender requirement, service escalation procedure etc needs to be submitted.

Commercial Bid – As part of the commercial bid, the tenderers are required to accept the techno commercial terms and conditions of the RFQ. They are also required to submit all requisite forms/ proforma and supporting documents as per the RFQ. The un-priced price bid (Form VI), duly stamped & signed should be submitted along with techno commercial offer.

The Tenderer shall also submit the signed and scanned copy of the General Rules and Regulations governing conduct of On-line Reverse Auctions (Annexure-VIII of the RFQ) as a token of acceptance of the same.

There shall be no indication of price in the techno-commercial bid. If prices are indicated there, such offers are liable to be rejected.

Statement of Deviations

The Purchaser (SAIL) solicits bids in conformity with the terms and conditions, without any deviations. However, if any Tenderer is unable to accept any particular term or proposes any deviation therefrom, the Tenderer shall enclose along with his offer, a Statement of Deviations as per Form-IV given in this RFQ clearly spelling out the deviations proposed.

The Tenderer shall submit Bid confirming acceptance to all terms and conditions of the RFQ, except for the deviations specifically proposed as Form-IV (Statement of Deviation) in the Bid. **SAIL, however, reserves its right to take a final call on the acceptance or otherwise of the deviations indicated/proposed by the tenderer while evaluating the techno-commercial bids.**

**Part III) Price Bid:**

This Bid should contain only the Price Bid, in the prescribed Price Bid Format, given at **Form-VI of this RFQ**. Price quoted should be firm and all-inclusive. The relevant taxes as applicable viz. CGST, SGST or UTGST, IGST etc. as applicable should be indicated in the relevant column of Price Bid.

The price quoted in Price Bid should be based on unit rate in each category. All categories listed in Form-VI should be quoted, failing which the tender bid shall be rejected (i.e. no partial offer will be accepted or evaluated). GST (as applicable) should not be included in the unit rate, but should be mentioned in respective columns as per price bid format. Statutory deductions like TDS etc. shall be made from the bill as per the prevailing rules & regulations of Government of India.

In case of levy of any additional tax or any change in the existing tax during the contract period (including extensions, if any), the same shall be to the Customer's account. SAIL, however, reserves the right to conclude price-discovery either through online Reverse Auction (RA) or by opening of this sealed price bid.

SUBMISSION OF BIDS

All the three parts (EMD-Part, Techno-Commercial Bid-Part2 & Price Bid Part-3) should be sealed in separate covers super-scribing the tender reference. The three sealed covers should then be sealed in a single envelope, super-scribing it as given below: -

[NIT No. SAIL/C&IT/RFQ/CMC/SERVERS/2018 dated 27-07-2018, Due date of Submission / Time of Opening - 24/08/2018 / 15.00 Hrs.]

[Tender: Comprehensive Maintenance Contract (CMC) for Server Systems (EPMS & PMS) at SAIL Corporate Office, New Delhi]

[Address: Office of M/s.Steel Authority of India Limited, Computer & Information Technology Department (C&IT), 1st Floor, Ispat Bhawan, Lodi Road, New Delhi -110003.

E) Tender Opening:

Only the EMD (Part I) and the Techno-Commercial Bids (Part II) of the bids submitted within due date and time will be opened in the presence of tenderers who choose to be present. Price bid (Part-III) shall be opened later or shall be done through on-line Reverse Auction over Internet, amongst techno-commercially acceptable bidders assessed by SAIL. **Date/ Time of opening of sealed price bids or Reverse Auction shall be intimated subsequently to Techno-Commercially acceptable tenderers.**

G) **Key Contacts:** For any clarification regarding the Tender Documents, the following officers of SAIL may be contacted:

<i>Name & Designation</i>	<i>Address</i>	<i>Phone no.</i>
Shri Naveen Jain DGM (C&IT) SAIL n.jain@sail.com	19 th Floor, Core 2, SCOPE Minar, Laxmi Nagar Delhi -10092	011-22403429
Ms. Rita Ratra SM(C&IT) SAIL rita.ratra@sail.com	1 st Floor, Ispat Bhawan, Lodhi Road, Integrated Office complex, New Delhi-110003	011-24309105

3. DEFINITIONS:

- The term "the Contract" shall mean the Request for Quote and acceptance of tender with the general terms and conditions that may be finally agreed upon.
- The term "Tenderer", "Contractor" or "Seller" or "Supplier" or "Party" shall mean the firm or company on whom the CMC is to be placed by the purchaser and shall be deemed to include its successors (approved by the purchaser), representatives, heirs, executors and administrators unless otherwise excluded by the contract.
- The term "Company" shall mean the Steel Authority of India Ltd.
- The term "Purchaser" shall mean the Steel Authority of India Limited and / or its units / SAIL Corporate Office.



4. The purchaser reserves the right to accept / reject the tender in full or in part without assigning any reason.
5. Tenders not confirming to the tender instructions and terms and conditions are liable to be rejected.
6. Tenderers shall furnish clause-by-clause compliance on all clauses of Bid Document including Scope of Work. Use of the word "Noted" against any of the Bid conditions shall mean tenderer agrees to comply with that/those conditions of the Bid
7. The offers shall be made available in hard copies as specified in the RFQ and should be stamped & signed by the authorized signatory of the firm on all pages of the hard copy and must have page numbers on each page properly.
8. It may be noted that in no form the price should be indicated in techno-commercial part of the offer. However, un-priced price bid (Form VI), duly stamped & signed should be submitted along with techno commercial offer.
9. Bids submitted after due date & time shall not be accepted.
10. Tenderers must enclose GST registration certificates, Registration no., Sales Tax/ VAT Registration certificate, PAN etc. along with the techno-commercial offer.
11. If desired, Tenderer may visit the site to get acquainted with the work and the operating environment prior to submission of bid
12. Consortium bid is not acceptable.

13. Declaration by Tenderer

Tenderer to declare whether the proprietor / partner / Director of the firm has any relation with any employee working in the plants / units concerned or Director of SAIL including its subsidiaries and if so, give the details and the relationship.

14. Evaluation criteria:

- (a) Bid should be submitted in sealed envelope.
- (b) The Techno- Commercial offer of the tenderer will be opened only for such tenderers who have submitted the EMD (Part-I) for the requisite amount.
- (c) Offers of following kinds may be rejected:
 - i) Offers which do not conform to validity as per RFQ
 - ii) Offers without duly filled in **Forms/Proforma as per RFQ** along with supporting documents wherever required
 - iii) Offers where prices are not firm during the entire duration of the contract and/or are conditional offers
 - iv) Offers which do not conform to RFQ terms and conditions.
- (d) Technical/ Commercial Evaluation criteria:

Incomplete and non-confirming bids will be rejected outright.

 - i) Bid should be complete and covering the entire scope of work.
 - ii) Bid should conform to all the technical and commercial condition indicated in the bid documents.



(e) **Price Evaluation Criteria**

i) **Evaluation of bids: -**

Bids shall be evaluated on the Total Price (Net of ITC) quoted as indicated in **Price Bid Format in Form -VI** of this RFQ. Among the techno-commercially acceptable offers, the tenderer with the lowest Total Price (Net of ITC) quoted shall be awarded the contract. L-1 tenderer will be determined on the basis of the lowest cost (Net of ITC) for entire contract duration (EPMS & PMS for their respective service duration as indicated in the RFQ).

- ii) While evaluating the bids, arithmetical errors will be rectified on the following basis. If there is a discrepancy between the unit price and the total price, which is obtained by multiplying the unit price and quantity, or between subtotals and the total price, the unit or subtotal price shall prevail, and the total price shall be corrected. If there is a discrepancy between words and figures, the amount in words will prevail. If a Bidder does not accept the correction of errors, its bid will be rejected and its bid security (EMD) may be forfeited.
- iii) The lowest tenderer may be required to justify the rates quoted by him and in case of any refusal for providing justification, the tenderer will be asked to furnish additional performance guarantee bond (by way of bank draft / bank guarantee from Scheduled banks) equal to the difference between the quoted price and the purchaser's estimate. The validity of bank guarantee, thus submitted, will be same as that of performance security bank guarantee as per clause 10 of Annexure - IV. EMD of the tenderer who refuses to comply with this clause would be forfeited. However, if the lowest tenderer is able to justify his rates and the same is found workable by the purchaser, then such performance guarantee bond may be waived.
- iv) SAIL reserves the right to conduct Reverse Auction(RA) amongst techno commercially acceptable tenderer instead of Opening the sealed price bid submitted by the tenderer, for determination of L-1 bidder.

SCOPE OF WORK

- 1.0) The supplier shall maintain the equipment specified in Annexure-III C (Items 1-22- **EPMS & PMS System**) for the Period 10-08-2018 to 09-08-2019 (or Any extension thereof). Any subsequent additions/deletions shall also be deemed to be covered by and subject to terms & conditions of this CMC.
- 2.0) In the event 'SAIL' requires modifications, replacement, additions or alterations to any of the computer systems, Supplier may undertake the same at additional charges to be mutually agreed upon.
- 3.0) Services shall consist of Comprehensive Preventive & Breakdown Maintenance along with software support. This will include carrying out all necessary repairs, provisions for supplies/fittings and replacement of defective parts viz. Mother board/ RAM/ Hard disk/ Power modules/ LCD Panel etc. In case of replacement of parts, the removed part shall be handed over to the supplier. **The vendor should ensure that this replacement process should be carried out in conformity with the prevailing GST laws**
- 4.0) The supplier shall repair or replace all hardware parts with existing make & specification, same or better, free of cost during CMC period. Only in case of exceptional circumstances, if the parts of same specifications and make are not available, the supplier shall obtain prior approval of SAIL for using compatible parts of different make / specification. In all such cases genuineness and compatibility of the replacement parts will be established by the supplier to Maintenance Administrator of SAIL before replacement.
- 5.0) The Tenderer shall provide -
 - 5.1) **For EPMS System:-**

Comprehensive maintenance services for the complete Hardware & Software of the EPMS system **for the contract period** on 24x7X365 basis round the year. The maintenance shall be comprehensive in nature including all items/spares required for smooth and trouble free Operation of the existing system. The maintenance of the system shall include the following: -

 - a. Hardware Maintenance of the following:-
 - i. Blade Servers (Web & Application Servers, Active Directory Servers)
 - ii. Database Servers (EPIC based)
 - iii. Radware Load Balancer
 - iv. Switches (Server Aggregation & KVM Switches)
 - v. SAN Switch & Storage system
 - vi. Auto Loader
 - vii. Backup Server
 - viii. Miscellaneous Server – (1U)
 - ix. Power supply arrangement
 - x. Racks and their associated equipment, including cables in the racks using Cable Managers
 - xi. Blade Enclosure
 - xii. Common Console device
 - xiii. FO/UTP cables, patch panel, patch chords, Power cables, PVC Pipe/channel etc. to connect the servers in the network from UPS point in the server room
 - xiv. Upgradation of Firmware's (if required).
 - b. Software Maintenance (Configuration & re-installation if required) of
 - i. Operating System of all Servers (*including patch management*) and devices

Please refer to the attached list at Annexure –III C (Items 1-16) for details.

- ii. Utility Tools
- iii. Software development tools
- iv. OS level Clustering of Oracle Database Servers (*Two node HP cluster*)
- v. Crystal Reports, .Net Framework, Oracle Data Access Components, Web Services, Active Directory services and Internet Information Services(IIS), Application pools, Virtual Directory etc.
- vi. Load balancing between web servers and among application servers.
- vii. Auto Loader and Backup Software & Management System
- viii. Storage Management system (including creation of LUNS, zoning, masking, if required)
- ix. Managed Layer-3 based rack mountable Aggregation Switch
- x. IP based Digital KVM Switch
- xi. Common Console device
- xii. Oracle Database Management System(including free patch management, if required)
- xiii. Upgradation of OS or Database (if required).

The media for Operating system, RDBMS, Utility tools, software development tools and associated software shall be provided by SAIL.

- c. Network support services for all the above resource as per *the attached list at Annexure –III C(Items 1-16) for details.*
- d. Hardware & Software based remote administration from a standard web browser with event logging, detailed server status, Logs, Alert Forwarding, virtual control, remote graphical console, Remote power control/shut down, virtual text and graphical control.
- e. Maintenance including re-installation & configuration (*if required*) of Oracle 10g Database and RMAN backup & recovery system.
- f. Maintenance (including re-installation, configuration & creation of farms, if required) of Radware Devices (*Secondary Radware to take over on failover of the primary one*).
- g. Recovery (*in case of system crash*) of all data and software on EPMS system from the Backup system.
- h. Deployment of in-house developed application software for EPMS on servers & storage systems.
- i. Assigning of IP addresses to devices along with configuration of Virtual IP addresses wherever applicable.
- j. Maintenance shall include re-installation & configuration of all software & systems as per need.
- k. The hardware maintenance shall include free repair/replacement of all defective hardware, cables & accessories etc.

Database Activities will include -

- Monitoring of Oracle System, Alert logs etc.
- Creation of free space in all Tablespace
- Managing the database's storage structures
- Checking mount points/space utilization
- Purging Database invalid schema objects and logs
- Verification of RMAN backups
- Monitoring and tuning performance

5.2) For PMS System:-

Comprehensive maintenance services for the complete Hardware & Software **of the PMS system for the contract period** on 24x7x365 basis round the year. The maintenance shall be comprehensive in nature including all items/spares required for smooth and trouble free operation of the existing system.

a. Hardware Maintenance of the following: -

- i. Web server
- ii. Database server
- iii. Backup Server
- iv. Contract manager server
- v. Tape drive
- vi. USB Hard Disk
- vii. KVM Switch
- viii. Common Console device
- ix. Power supply arrangement
- x. Racks and their associated equipment, including cables in the racks using Cable Managers
- xi. FO/UTP cables, patch panel, patch chords, Power cables, PVC Pipe/channel etc. to connect the servers in the network from UPS point in the server room
- xii. Upgradation of Firmwares (if required).

Please refer to the attached list at Annexure –III C (Items 17-22) for details.

b. Software Maintenance (Configuration & re-installation if required) of the following

- i. Operating System of all Servers (Window 2003 Server or Higher) including patch management, review of event logs etc.
- ii. Utility & Software Tools
- iii. Backup Software & Management System
- iv. Recovery (in case of system crash) of data on server from the database Backup.
- v. Installation & configuration of Primavera® P6™ Project Management & Oracle Primavera P6 web services & application server.
- vi. Database Management System: Oracle 10g(including free patch management, if required)&
- vii. Upgradation of OS or database (if required).

The media for Operating system, RDBM utility tools, software development tools and associated software shall be provided by SAIL.

c. Network support -

Network support services for all the resources as per the *attached list at Annexure –III C (Items 17-22).*

d. Database Activities will include -

- i. Monitoring of Oracle System, Alert logs etc.
- ii. Creation of free space in all Tablespace
- iii. Managing the database's storage structures
- iv. Checking space utilization
- v. Purging Database invalid schema objects and logs
- vi. Monitoring and tuning performance

e. Submission of comprehensive monthly report regarding upkeep of the Servers & Database by the vendor.

In all cases, the tenderer has to ensure their own technical manpower for resolution of any issues, which may be reported from time to time. **Back-to-back agreement with OEM is a pre-requisite for providing support for Items (1-22) of Annexure III C.** However, in case of any of the items are declared end of life /end of service life (EOSL) during the contract period by the concerned OEM, such item(s) shall be maintained and supported by the tenderer on its own. This shall be applicable only if the respective OEM certifies items to be EOSL for which back to back support is not offered by OEM.

During the Monthly schedule of Preventive Maintenance along with the internal dust cleaning the vendor shall undertake the following tasks:-

- i) Clean case, blow out dust, and ensure proper power connectivity
- ii) Ensure cleanliness and orderliness of wiring closets and technical environments
- iii) Fix any faulty hardware

Besides comprehensive preventive maintenance, the services shall also consist of breakdown maintenance and include diagnosis & rectification of the faults of the hardware and repair/replacement of the faulty part/equipment/hardware. The diagnosis shall mainly be as under:-

- a) Diagnose & rectify the faults of the hardware/operating systems.
- b) Repair/replace the faulty equipment/hardware.
- c) Re-configuration, if required and putting it back in the network.

- 6.0) The supplier shall maintain proper organization in terms of human resources, tools and test equipment, gauges & gadgets to run diagnostics.
- 7.0) The successful tenderer shall depute well trained/qualified engineers, who would visit SAIL's premises once in a month to attend to preventive maintenance & health check-up etc. The cost of such visits by engineer(s) should be included in the cost of maintenance of equipment.
- 8.0) Well trained/qualified engineers shall be provided for attending the complaint. **No hit & trial method** will be allowed while attending the server complaint.
- 9.0) The comprehensive maintenance shall be carried out primarily at the premises of SAIL during office hours. In case, the supplier feels that the equipment cannot be repaired at site, he will bring it to the notice of maintenance administrator of SAIL and only after due permission from him/her, it will carry the equipment to authorized repair center/service, get it repaired and deliver back the equipment at its own cost and risk to get it repaired promptly.

10.0) **CARE OF THE EQUIPMENT**

- i) The customer shall give the supplier full & free access to the equipment to enable the supplier to provide maintenance services & make available to the supplier, the services of customer's staff, who are familiar with the programs run and provide suitable working space and facilities.
- ii) Supplier shall not be liable for any damages/loss which may occur as a result of transfer of the system by the customer from present location to another location / premises without assistance by Supplier's Supervision Engineers in this respect.
- iii) Scope of contract does not include failure of product/parts due to mishandling, breakage and damages by the customer.
- iv) Supplier shall carry out routine voltage checking / electrical fault etc. of the customer premises periodically, and intimate in writing of any fault found. This is essential as **NO** claim for repair on chargeable basis on account of failure / damage attributable to electrical faults will be entertained, until & unless it has been established that these repairs have been necessitated due to erratic power supply.



11.0) MAINTENANCE RECORDS & CALL COORDINATION

- i) Supplier shall maintain history card for each unit of the equipment indicating preventive maintenance activities, types of breakdowns, types of repairs carried out and spare parts used. These history cards shall be handed over to customer as and when the contract is terminated.
- ii) The supplier shall supply the customer with call sheets / Log Register on regular basis in which details of breakdown, time at which the breakdown took place, calls made and time taken to attend the call, etc. will be indicated. These call sheets/Log Register shall form the basic document on the basis of which uptime will be calculated.
- iii) All Complaint calls should invariably be recorded in Call Sheets/Log Register kept at Customer's site.

12.0) MOVEMENT OF TERMINALS AND OTHER PERIPHERALS EQUIPMENTS

In case the servers or hardware covered under this contract need to be relocated to other premises, the supplier shall depute his engineers for supervision during such relocation/transfer at no extra cost.

13.0) EXTENSION OF CONTRACT

SAIL, however, reserves the right to extend the contract for a further period of one year on same terms and conditions. Further, SAIL may extend the contract for one or more quarters to ensure uninterrupted care & services to both the systems pending the finalization of fresh contract.

14.0) UNINTERRUPTED SERVICES

In the event of new contract not being finalized by the customer before the expiry of the current contract (including extended period, when applicable), the contractor shall at the end of CMC period, continue to carry out the maintenance services for one or more quarter or as communicated by "SAIL" on the same terms & conditions.

Annexure III B**INFRASTRUCTURE & WORK-FLOW OF THE SEVER SYSTEMS (EPMS & PMS)****A. EPMS SERVER SYSTEM****Infrastructure**

The existing **EPMS** Server system consist of Server Aggregation switch, Web Servers, Application Servers, Database Servers, Active Directory Server, Storage Area Network (SAN) switches and External storage boxes. The Aggregation switch is connected to the existing Core switch of SAIL Offices at Scope Minar through 1 Gbps link. All these Servers are connected to the Aggregation switch on 1 GBps link. The SAN switches are connected with the Database servers through fiber channel connectivity. The external storage boxes are connected to the SAN switches through fiber channel connectivity. The connectivity diagram for Servers & Storage System has been shown in Annexure-III B.

The EPMS Server system is in Data Centre Setup located at 19th Floor, Scope Minar Office, New Delhi.

The application software has been developed in-house. The software is based on three tier architecture, using Oracle 10G as Relational Database Management System (RDBMS) and Dot Net with C Sharp as front end development tools. The software is being used for online assessment by self, reporting officer & reviewing officer and online entry & monitoring of Task, Target and Key Performance Areas (KPAs) for the executives of SAIL, working in different steel plants & subsidiaries of SAIL. The total number of executives covered under above mentioned Performance management system (EPMS) is approximately, 16000.

The system has been designed such a way, so that the users are able to log in to the system directly from their existing PCs, having Windows based operating system. The software is browser based, where the users access the system based on authentic User id and password allotted to them. The log in request raised by the users is processed through Web Server, after authentication and authorization the request is passed on to one of the Application Servers based on load balancer. The Application Server then processes the request/query by fetching data from the storage system through Database Server and directs the output to the concerned user.

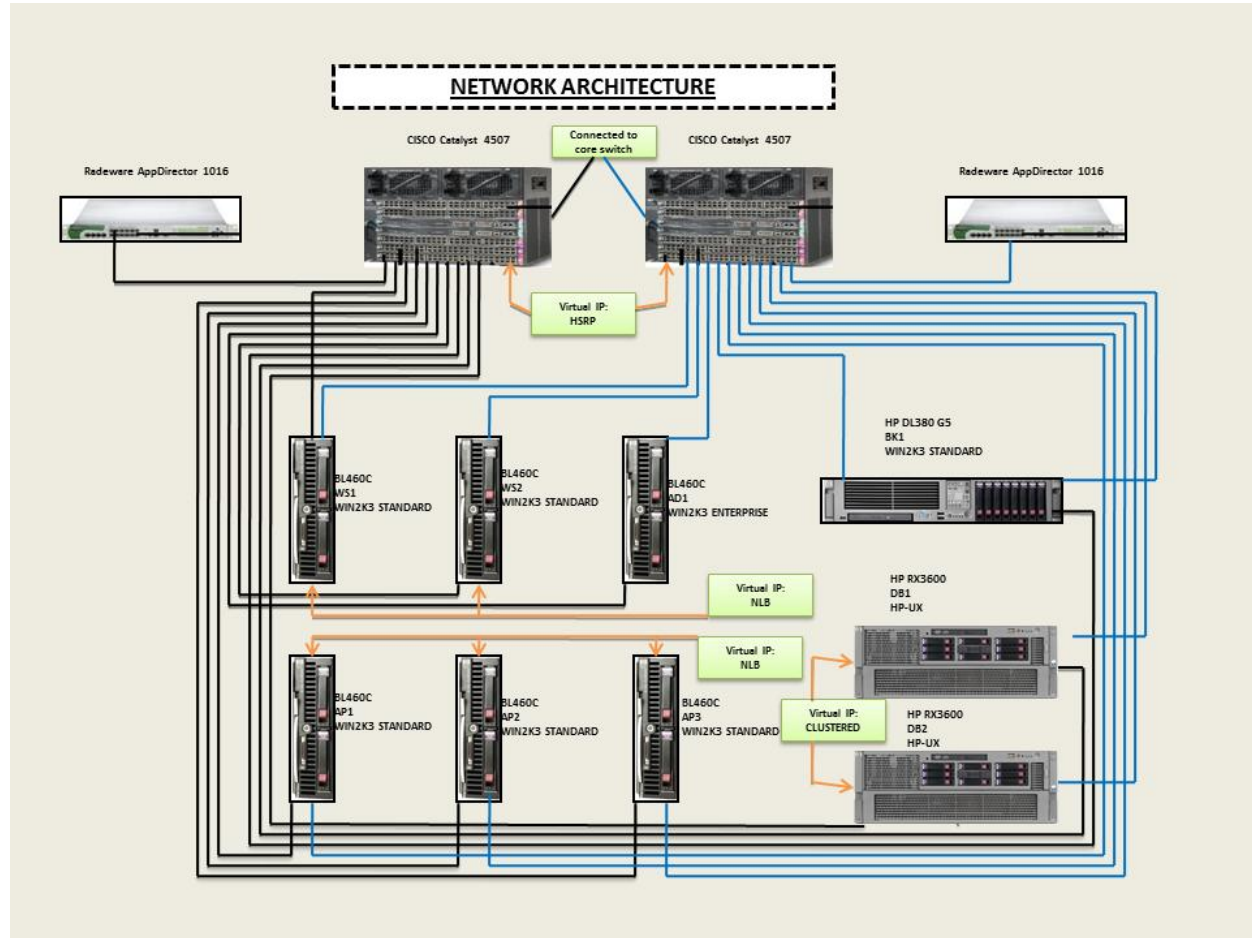
Work Flow

In the production environment, the request from the end-user hits the Radware device first through the network. Radware Device will load balance the request between the two Web Servers. Another Radware will act as a failover to the primary one. The Radware forwards the request to one of the available Web Servers.

Then from the Web Server the Login page will open screen for authenticating the user name and password. After successfully authenticating the user request will be passed on to one of the Application Servers based on load balancer. In the Application Servers the existing EPMS application is deployed on using Internet Information Services & .NET framework. The Application Server will process the request/query by fetching data from the Database Server and directs the output to the concerned user.

(Refer to the EPMS SAIL Network Architecture Diagram as given below)

Network Architecture of EPMS server system



B. PMS SERVER SYSTEM**Infrastructure**

The existing PMS Server system consist of 4 Xeon servers, 1 tape drive, KVM switch, 1 console and 1 rack and operates in Client/Server environment. The Primavera based online Project Monitoring system has 1 contract manager, 1 web server, 2 database servers.

The PMS runs in Data Centre environment and is located at its 20th Floor, Scope Minar Office.

Work Flow

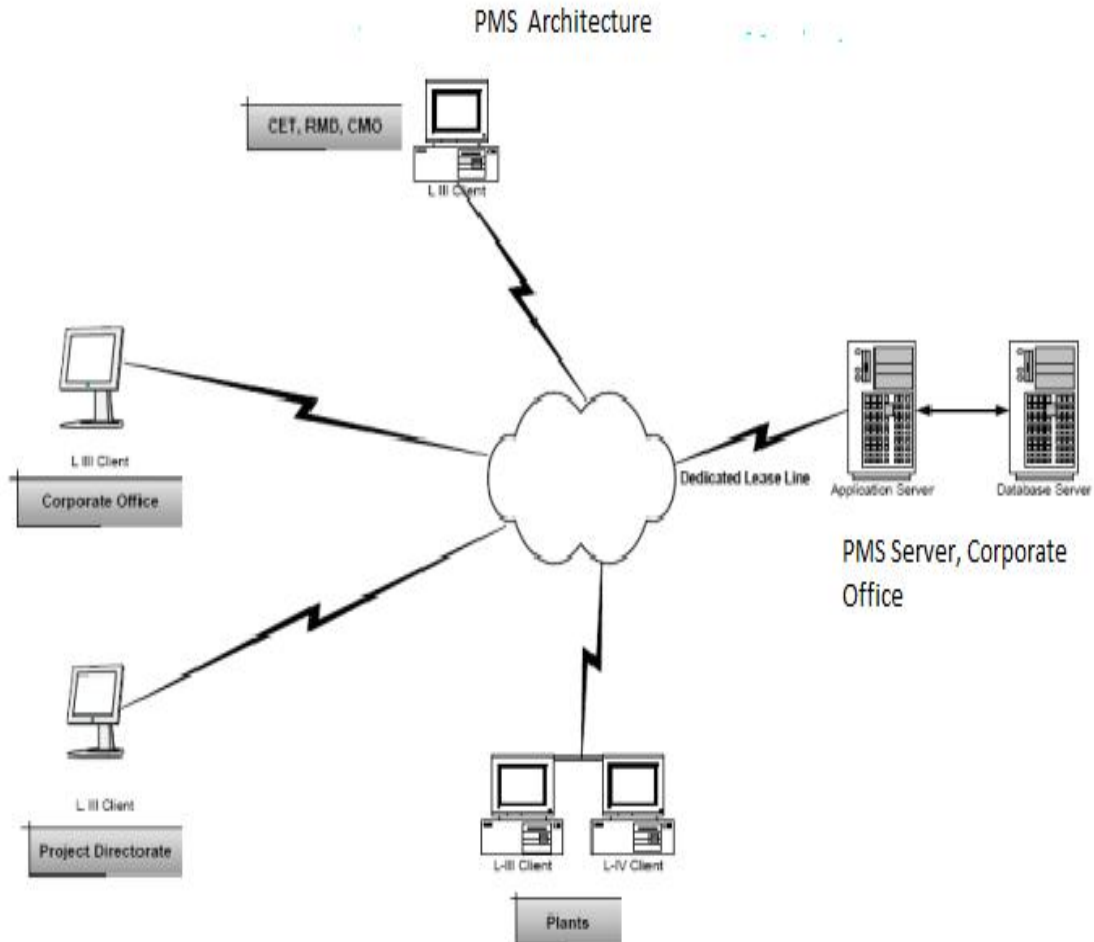
In the production environment, the Server is accessed by all SAIL plants /units through the SAIL Network. New AMR Projects & Expansion Data is entered by all SAIL plants /units time to time. This data is monitored by Project Department of Corporate office, New Delhi & the top management of SAIL.

Primavera based Online Project monitoring system (PMS) is a multiuser, multi-project system with scheduling and resource control capabilities supporting multi-tiered project hierarchies, resource scheduling with a focus on roles and skills, recording of actual data, customizable views and user-definable data.

Primavera is loaded in Central Servers located at Corporate Office, New Delhi which can be accessed by 205 Nodes situated at various plants/units. These Nodes are connected with the Central Server with a Bandwidth of 8 MBPS. Project team of plant/unit can log-in in the Central Server with their authorized user-id and password provided for updating the project status on day-to day basis.

(Refer to the PMS SAIL Network Architecture Diagram as given below)

Network Architecture of PMS server system



Annexure III C
Detailed list of equipment for EPMS server system

Sl. No.	Item Description	Part No.	Product S/No.	CPU Detail	RAM	Operating System	Equipment Qty.	Back to Back Support required
1	Server Aggregation Switch - CISCO WS-C4507 R-E	WS-C4507R-E	FOX1241GUV7, FOX1241GUVC	Catalyst 4000 supervisor IV (2 GE), 24 port module (RJ45), GBIC module (2 port), 1000 base LX/LH – 4 nos	1000W AC power supply - redundant		2 Nos.	Y Y
2	KVM Switch (1:8) - HP Standard	HP-AF601A	MY2831DSH1, MY2842E438	IP based Digital KVM Switch for connecting common console with Servers			2 Nos.	Y Y
3	Common Console Device - HP Standard	AG066A	2C49031642, 2C484710KS				2 Sets	Y Y
4	Web Server - HP BL 460c Blade server	HP-459487-B21	CN7851009Z, CN7851009X	Xeon based 64Bit Quad Core Processor	8GB Memory Expandable to 32GB 2 No 146 GB hot pluggable SAS Hard Disk	MS Window 2003 (Std) Web Server Soft ware to connect to application Server	2 Nos.	Y Y
5	Application Server - HP BL 460c Blade Server	HP-459487-B21	CN78510096, CN78510098, CN785100A1	Xeon based 64Bit Quad Core Processor	8GB Memory Expandable to 32GB 2 No 146 GB hot pluggable SAS Hard Disk	Window 2003(Std) Visual Studio (2005)	3 Nos.	Y Y Y
6	Load Balancer - Radware 1016 (AppDirector 1016ODS2)	19038004	21800405, 31302817	Load balancing between Application Servers			2 Nos.	Y Y
7	Database Server - HP rx 3600 rack mountable server	HP-AB596A	SGH4905KJN, SGH4905KJP	EPIC based No. Of Processing core 4	24GB Memory Expandable to 64 GB 3 No 146 GB hot pluggable SAS Hard Disk	HP Unix11i V3 OS level Clustering Software Oracle 10g Enterprise Edition with a total 6 CPU Lic (3 each).	2 Nos.	Y Y
8	Management & Backup Server - HP DL 380G5 rack mountable		IN18360056	2 x Dual Core Intel Xeon Processor	8GB Memory Expandable to 32 GB 4 No 146 GB hot pluggable SAS Hard Disk	Window 2003(Std) System Management Software Backup Software	1 No.	Y



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9	Active Directory Server - HP BL 460c Blade Server	HP-459487-B21	CN78510097	Xeon based 64Bit Quad Core Processor	8GB Memory Expandable to 32GB 2 No 146 GB hot pluggable SAS Hard Disk	Window 2003(Std) Directory Server Software	1 No.	Y
10	Enclosure for Blade Based Servers – HP c7000	HP-403320 B22	SGH902YW87				1 No.	Y
11	SAN Switch - HP 8Gb Shortwave B-series FC SFP - HP 8/8 and 8/8 SAN Switch 8-pt Upgr LTU	HP-AM867A HP-492291-001	USB903T8CH USB008T007				2 Nos.	Y Y
12	Storage External Storage Box - HP EVA4400 & Base Storage Server HP DL380G5 (rack mountable)	HP-AG556A, HPAJ694A HP-AG815B	SGH9060JT6, SGH9060JT7 SGH9060JT8	Xeon based 64Bit Quad Core Processor	HP 146 GB 15k (22 in number) – each SAN 1GB Memory Expandable to 8GB 2 No 72 GB hot pluggable SAS Hard Disk	Window Storage Server 2003(Std)	2 Nos. 1 No.	Y Y Y
13	Autoloader - 1/8 G2 HP auto loader	AA164A	MXA8511020				1 No.	Y
14	Mounting Rack (42U) for servers - HP 10542	HP-AF002A	SGH090HNL SGH0906J71				2 Nos.	Y Y
15	HP DL 320G5p rack mountable – 1U	HP-DL320G5p	SGH814H87N	Intel Xeon	4 GB Memory 2 No. 80GB HDD hot pluggable SAS Hard Disk	Window 2003(Std)	1 No.	Y
16.	OS Support, Database Support & Services for EPMS Server system							NA



Detailed list of equipment for PMS server system

Sl. No.	Item Description	Part No.	Product S/No.	CPU Detail	RAM	Operating System	Equipment Qty.	Back to back Support required
17	IBM X Series 3650 - IBM (Rack)	X Series 3650	99HN160, 99HP836	Dual Core Intel Xeon 5160, 3.0 GHz	4 (2 x 2 GB) PC2-5300 CL5 ECC RAM 3 * 146 GB 3.5" hot swap SAS HDD IBM Server RAID 8K SAS Adapter 1 CD-RW / DVD Combo 2* 10/100/1000 Mbps Ethernet Card Hot swappable redundant Power supply(One Server with IBM SAS HBA controller)	Windows Server 2008 / Windows server 2003 R2	2 Nos.	Y Y
18	IBM X Series 3650 - IBM (Rack)	X Series 3650	99HA272, 99KH047	Quad Core Intel Xeon 5160, 3.0 GHz	4 (2 x 2 GB) PC2-5300 CL5 ECC RAM 2 * 146 GB 3.5" hot swap SAS HDD IBM Server RAID 8K SAS Adapter 1 CD-RW / DVD Combo 2* 10/100/1000 Mbps Ethernet Card Hot swappable redundant Power supply	Windows Server 2008 / Windows server 2003 R2	2 Nos.	Y Y
19	Tape Drive – TS2240 Half-High LTO 4 SAS Tape drive with enclosure & power supply-IBM (Make/brand)	Type-3580H4S1S4E P/N 45E0479	YN1K1B004003				1 No.	Y
20	USB Hard Disk Drive- Seagate make(Make/brand)	1000GB P/N 9ZC2AG-501	2GEWEAX2				1 No.	N



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21	KVM switch – Avocent DSR 1021 with DSRIQ-USB / DSRIQ-PS2 with 4 sets of cables, Lenovo Monitor, Lenovo Key Board & Lenovo Mouse		0100183740				1 set	Y
22	30 U Rack APW president with accessories- APW President						1 No.	N
23	OS Support, Database Support & Services for PMS Server system							N

All the equipment's from (Item 1-15) and item(17-22) should have back to back support except where equipment has been declared EOSL and back-to-back support is not provided by OEM

Annexure -IV

TERMS AND CONDITIONS

- 1.0 The tenderer must respond to all the points explicitly included in the Scope of Work as per **Annexure- III A**. The scope of work for CMC of Servers, Storage, switches etc. should follow the standard conventions prevalent in the industry.
- 2.0 **Period of Validity of Bids:** Bids shall remain valid for 60 days from the date of opening of tender. A bid valid for a shorter period is liable to be rejected.
- 3.0 **Price:** The price shall be quoted as per the schedule given at Form-VI. The Basic Price shall be inclusive of all taxes/duties/levies etc. applicable EXCEPT GOODS & SERVICE TAX (GST). The GST applicable on Basic Prices shall be indicated in the correct column. The price bid quoted in any other format other than enclosed (Form-VI) shall be out rightly rejected. TDS shall be deducted as per Income Tax Act.

Basic Price (CMC charges for entire service period) discovered and finalized shall be FIRM for entire contract period (including extensions thereof) and SHALL NOT be subject to any escalation for any reason whatsoever. GST however will be payable extra as per prevalent rates/rules notified by Govt. of India. For the purpose of processing of bills, Daily CMC charges, if necessary, will be calculated as follows:

Server System	Basic Quarterly CMC Charges (in Rs.)	Daily CMC Charges (in Rs.)
EPMS	Say X	X divided by 91 days
PMS	Say Y	Y divided by 91 days

Note: Successful bidder will provide price break-up ("X" and "Y") of CMC charges in case price-discovery is done through online Reverse Auction.

GST Clauses

TDS FOR INCOME TAX

Tax deduction of source (TDS) shall be mode towards income tax from all the bills of the contractor at applicable rates as per Income Tax Act and Rules.

OTHER TAXES

1. For the purposes of levy and imposition of GST, the expressions shall have the following meanings:
 - a) **GST** - means any tax imposed on the supply of goods and/or services under GST Law.
 - b) **Cess** - means any applicable cess, existing or future on the supply of Goods and Services as per Goods and Services Tax (Compensation to States) Act, 2017.
 - c) **GST Law** - means IGST Act 2017, CGST Act 2017, UTGST Act, 2017 and SGST Act, 2017 and all related ancillary Rules and Notifications issued in this regard from time to time.

The basic rates quoted by the Vendor/Supplier/Contractor shall be inclusive of all taxes, duties, levies and Cess except GST. Vendor/Supplier/Contractor has to clearly show the amount of GST separately in the Tax Invoices raised by them. Further, it is the responsibility of the Vendor/Supplier/Contractor to make all possible efforts to make their Accounting/IT system GST compliant in order to ensure timely availability of Input Tax Credit (ITC) to SAIL.
2. In cases where GST is leviable on any facilities/supplies provided by SAIL and used by Vendor/Supplier/Contractors in the contract and the consideration for which is recovered by SAIL in the form of reduction in the value of invoice raised by Vendor/Supplier/Contractor, then SAIL will raise GST invoices on such transactions and the same will be borne by Vendor/Supplier/Contractors.

3. Evaluation of L-I prices shall done based on landed cost net of Input Tax Credit of GST, if available to SAIL. SAIL shall evaluate the offers on the basis of the quoted rates only and any claim subsequently by the Vendor/Supplier/Contractor for additional payment/liability shall not be admitted and has to be borne by the Vendor/Supplier/Contractor. The supplier under Composition Scheme should carefully understand the implication of Input Tax Credit (ITC) before quoting the rates.
4. For the purpose of this contract, it is agreed between the parties that if any new taxes, duties or levies other than GST is introduced subsequent to the final date of submission of tender or reverse auction by the Central/State Government & Local Authorities and such new taxes, duties or levies become payable, then on equitable adjustment on account of new taxes, duties or levies in the contracted price shall be made which shall be subject to the production of documentary evidence by the Vendor/supplier/Contractor. This provision shall be applicable only during the original period of contract. However, during the extended period of contract, if any, this provision shall be applicable as follows :
 - a) If input tax credit (ITC) is available, the adjustment in contract price for such new tax shall be made.
 - b) In other cases (i.e. where tax credit is not available), adjustment in contract price shall be mode only if the new tax is enacted during the period of extension arising out of reasons attributable to SAIL.
5. In case of variation (increase/decrease) in the rate of GST after the final date of submission of tender or reverse auction, the said revised rate shall be reimbursed or recovered on production of relevant statutory documentary evidence. This provision shall be applicable only during the original period of contract. However, during the extended period of contract, if any, this provision shall be applicable as follows :
 - a) If input tax credit (ITC) is available, the said revised rate shall be reimbursed or recovered.
 - b) In other cases (i.e. where input tax credit is not available}, the said revised rate shall be reimbursed or recovered only if the reasons for extension of the contract is attributable to SAIL. In any case, recovery shall be made in case of a downward variation in the rate of tax.
6. Vendor/Supplier/Contractor agrees to do all things not limited to providing GST compliant Tax Invoices or other documentation as per GST law relating to the supply of goods and/or services covered in the instant contract like raising of and/or acceptance or rejection of credit notes/debit notes as the case may be, payment of taxes, timely filing of valid statutory Returns for the tax period on the Goods and Service Tax Network (GSTN), submission of general information as and when called for by SAIL in the customized format shared by SAIL in order to enable SAIL to update its database etc. that may be necessary to match the invoices on GSIN common portal and enable SAIL to claim input tax credit in relation to any GST payable under this Contract or in respect of any supply under this Contract.
7. In case Input Tax Credit of GST is denied or demand is recovered from SAIL by the Central/State Authorities on account of any non-compliance by Vendor/Supplier/Contractor, including non-payment of GST charged and recovered, the Vendor/Supplier/Contractor shall indemnify SAIL in respect of all claims of tax, penalty and/or interest, loss, damages, costs, expenses and liability that may arise due to such non-compliance. SAIL, of its discretion, may also withhold/recover such disputed amount from the pending payments of the Vend/Supplier/Contractor.
8. Vendor/Supplier/Contractor shall maintain high GST compliance rating track record at any given point of time.
9. Vendor/Supplier/Contractor is required to pass on the benefit arising out of introduction of GST, including seamless flow of Input Tax Credit, reduction in Tax Rate on inputs as well as final goods by way of reduction of price as contemplated in the provision relating to Anti-Profitereing Measure as per CGST Act, 2017.
10. Vendor/Supplier/Contractor shall avail the most beneficial Notifications, abatements, exemptions etc., if any, as applicable for the supplies under the Goods and Service Tax Act.

11. Bidder is required to provide the self-attested copy of his GST Registration certificate and complete address of his principal place of business and branches if any.
12. In case of Bidder is registered under Composition Scheme, than they should clearly mentioned in the offer that they are covered under Composition Scheme and no GST will be charged separately against execution of the contract.

4.0 Personnel deployed for the maintenance activities:

The tenderer will ensure that the personnel assigned for the maintenance activities possess the required skills, qualification and experience in the relevant fields and are adequate in number to be able to complete the tasks as per schedule indicated in the Tender.

5.0 Payment Terms: Payments due under this contract shall be made as per the payment terms described below in this section. The Party will raise an invoice of the payments becoming due and the SAIL shall release the payment after receipt of the invoice. All payments due to the party will be subject to **Tax Deduction at Source** as per the prevailing Income Tax Act and other applicable levies as per the rules of the State / Central Governments viz. **Work contract Tax**.

The Maintenance charges will be calculated on quarterly basis and paid to the party on quarterly basis in the month following the quarter

6.0 Submission and Processing of Bills:

The supplier shall submit the bill to the Executing Authority (EA) with the following documents:

- (i) Invoice in the format as prescribed by SAIL
- (ii) Penalty details as per Contractual terms (Downtime calculation, delay in replacing faulty spare parts and not performing scheduled Preventive Maintenance)
- (iii) Proof of carrying out monthly preventive maintenance (NO BILL will be processed without carrying out monthly PM)

Invoice for comprehensive maintenance charges will be raised on Quarterly basis after completion of a financial Quarter (Apr-Jun, Jul-Sep, Oct-Dec and Jan-Mar) and on presentation of invoice by the successful tenderer complete in all respects. *In respect of quarter(s) where full 3 (three) months period is not covered, the bill will be raised on proportionate basis for the period falling in the respective quarter.*

Release of payment by the Paying Authority to the Service Provider shall be subject to fulfilling all the performance criteria. Further, payment shall be made within 30 days of presentation of valid invoice at SAIL.

Executing Authority: DGM (C&IT), SAIL and/or his authorized representative.

Paying Authority: GM (Finance), SAIL and his authorized representative.

7.0 Down Time Calculation: Down time will not be considered under the following conditions:

- Where SAIL has modified the hardware without prior consent of Successful Tenderer.
- Time taken for pre-scheduled preventive maintenance and health check at a time convenient to Successful Tenderer during the agreed Service Hours.
- Repair time due to equipment failure caused by operational error.
- Repair time due to equipment failure caused by confirmed environmental conditions.
- Standby equipment of similar or higher configuration/ capacity is provided, to meet the needs of the end-user.

8.0 PENALTY CALCULATION:

All penalty calculation will be done on quarterly basis for EPMS (Item 1-16) & PMS (Item 17-23) System separately. Recovery of penalty amount would be at the time of release of quarterly payments.

A) Penalty for Downtime

- Entire EPMS (Item 1-16)& PMS (Item 17-23) System shall work in 24x7x365 mode.
- The uptime calculation will be done on monthly basis for both the systems. Uptime for the EPMS & PMS will have to be a minimum of 99% and 98% respectively.

$$\% \text{ Uptime} = (\text{POT} - \text{PMT} - \text{DT}) * 100 / (\text{POT} - \text{PMT})$$

POT : Power on time (in Hours)
PMT : Preventive Maintenance time (in Hours)*
DT : Downtime (in Hours).

*Preventive Maintenance Time (PMT) will be as agreed between SAIL and the service provider with respect to preventive maintenance schedule before start of the activity.

Deductions for downtime beyond the acceptable limits will be made from quarterly bill. For each percent downtime below the scheduled level of uptime (99% for EPMS; 8% for PMS), percentage deduction specified as under will be made from the Total monthly CMC amount separately for EPMS and PMS servers, which gets affected.

EPMS System	: 2% of Total Monthly CMC amount
PMS System	: 0.5% of Total Monthly CMC amount

- Response time for each call logging shall be within four (4) hours, failing which a penalty of Rs 1500/- will be levied for each such incidence. *Response time means that call should be attended physically / remotely and problem should be identified & communicated to SAIL.*

B) Penalty for delay in replacing faulty spare parts

Spares type	Parts to be replaced	Penalty
minor spares	Parts like floppy drive CD/DVD etc. of equipment's covered in CMC, which do not affect working of the system, replacement part should be provided by service provider within 5 days from the notification time	Failure to replace the faulty part(s) will make the service provider liable to pay penalty <u>after 5 days from notification time</u> @ Rs500/- per day
major spares	Parts like power supply, hard disk, motherboard, RAM etc. of equipment's and/or equipment as a whole covered in CMC (which do not affect working of the system)replacement part should be provided by service provider within 3 days from the notification time	Failure to replace the faulty part(s) will make the service provider liable to pay a penalty <u>after 3 days from notification times</u> follows: ➤ Rs. 1000/- per day for 1 st two days; and ➤ Rs. 1500/- per day after from notification time for the faulted Server/Storage etc. <i>(Penalty shall not be levied if a suitable standby machine of similar configuration is provided within 24 hours of notification time for Major faults in case of servers' breakdown)</i>

In case the fault cannot be resolved at site, pick-up and drop of materials for fault- rectification will be the supplier/ service provider's responsibility.

C) Penalty for not performing scheduled Preventive Maintenance

If scheduled monthly Preventive Maintenance is not carried out, penalty for delay will be calculated as below:

EPMS System : Rs 1000 per default
PMS System : Rs 500 per default



The penalty shall not be levied in case of failure of SAIL to make the equipment available to the service provider for maintenance as per schedule.

NOTIFICATION TIME OF CALL FOR THE PENALTY CALCULATION IS THE TIME WHEN THE CALL IS REPORTED TO CMC SERVICE PROVIDER THROUGH E-MAIL / VERBALLY / TELEPHONICALLY.

However total quarterly penalty for A)+B)+C) shall not exceed 10% of total quarterly CMC charges.

9.0 Award of Contract; SAIL will notify the successful party in writing about acceptance of their bids. The notification of award will constitute the formation of the Contract.

10.0 Performance Guarantee:

The Party shall submit a Performance Guarantee (PG) Bond in the form of Bank Guarantee in the prescribed PROFORMA given at Annexure - V, equivalent to 10% of the total value of the Contract valid for Fifteen (15) months from the date of Start of CMC. The Party shall submit the PG Bond within 21 days of signing of CMC. In case of unsatisfactory performance against the contract, the performance Bank Guarantee shall be encashed by SAIL. The PG Bond should be established in favour of Steel Authority of India Limited through Specified Scheduled Bank (list enclosed in this RFQ) located at New Delhi / NCR, except Cooperative and Gramin Banks.

The Bank Guarantee shall be extended for such further period or periods as may be necessary to cover an extended period of contract after the actual date of completion of annual maintenance contract.

The performance Guarantee shall be forfeited by SAIL, if the supplier/contractor is not able to rectify fault in time or is not able to discharge his liabilities as per the contract.

11.0 Services not to be included in CMC:

- Use of the equipment for purposes other than, for which they are designed.
- Accident or disaster, including water, wind and lighting.
- Damage caused by rodents or natural disaster.

12.0 Purchaser's Option for Extension of Contract:

SAIL at its own discretion may extend the contract period by one more year after expiry of the original contract period of one year on same terms and conditions.

In the event of new contract not being finalized by 'SAIL' before the expiry of the current contract (including extended period, when applicable), service provider shall at the end of CMC period, continue to carry out the maintenance services on the same terms & conditions for one or more quarters or as communicated by 'SAIL'.

13.0 Conciliation: All questions, claims, disputes and or differences of any kind whatsoever arising out of or in connection with or concerning this contract, at any time, whether before or after determination of the contract, shall be referred by the parties hereto for Conciliation before a Conciliatory Forum / Body.

The Conciliatory Forum / Body will be composed of the following members:-

- i) Nominee of the Steel Plant / Unit – Independent of officer handling the contract(to be nominated by the head of the concerned department.)
- ii) Nominee of the Contractor / Supplier / Customer.

The parties in dispute would place their facts in writing before the Body / Forum and the process of conciliation would be completed within the period of three months from the date of reference to the Conciliatory Forum / Body.



On failure of the conciliation, the aforesaid questions, claims, disputes and or differences shall be referred by the parties hereto for the decision by a Sole Arbitrator to be appointed as herein after mentioned.

- 14.0 Arbitration:** Matters in question, claims, dispute and or difference in respect of the contract to be submitted to arbitration as aforesaid shall be referred for decision to a Sole Arbitrator to be appointed by Director (Projects & Business Planning), SAIL. Before appointing the Sole Arbitrator, Director (Projects & Business Planning), SAIL shall nominate three names out of which the contractor / supplier / customer shall give his consent for one of them for appointment as Sole Arbitrator, failing which, after 30 days of the issuance of the letter informing three names Director (Projects & Business Planning), SAIL shall have the power to appoint one of the three notified persons as the Sole Arbitrator.

In case the designation of the Director (Projects & Business Planning), SAIL is changed or his office abolished, the officer who for the time being is entrusted with the functions of the Director (Projects & Business Planning), SAIL, by whatever designation such officer is called, shall be the person designated to appoint the Sole Arbitrator. The arbitrator so appointed shall adjudicate upon the disputes between the parties hereto.

The Sole Arbitrator appointed as stated above, shall from the time of his appointment and throughout the arbitration proceedings, without any delay, disclose to the parties in writing any circumstances likely to give rise to justifiable doubts as to his independence or impartiality provided that the mere fact that such Sole Arbitrator is an employee of SAIL or its subsidiary shall not be regarded as such circumstances. The arbitrator shall decide the questions, claims, disputes or differences submitted to him by the parties in accordance with the substantive law for the time being in force in India.

The arbitrator shall hear the cases independently and impartially and shall not represent the interest of any party. Any arbitrator having personal interest in the case at the time of his appointment and at any time subsequently thereafter must withdraw from his office himself and the parties shall also have the right to ask him to do so. The venue of the arbitration shall be New Delhi.

Procedure for conduct of the arbitration proceeding shall be decided by the arbitrator, in consultation with the parties before proceeding with reference. The arbitrator may hold preparatory meeting(s) for this purpose. In the preparatory meeting(s) as aforesaid, the arbitrator/s as the case may be in consultation with the parties shall also determine the manner of taking evidence, the summoning of expert evidence, and all such matters as are necessary for the expeditious disposal of the arbitration proceedings.

The provision of the Arbitration and Conciliation Act, 1996 and the rules framed thereunder, if any and all modifications / amendments thereto shall deem to apply and / or be incorporated in this contract and when such modifications / amendments to the Act / Rules are carried out.

Work / supply under the contract shall be continued by the contractor / supplier / customer, under the contract, during the arbitration proceedings and recourse to arbitration shall not be a bar to continuance for the work or supply unless otherwise directed in writing by the Plant / Unit.

- 15.0 Force Majeure:** In the event either or both the parties to the contract is/are prevented from discharging its/ their obligation(s) under the contract by reason of one or more of the events such as arrest(s), restraint(s), by government of people, blocked(s), revolution(s), insurrection(s), mobilization(s), strike(s), lockouts(s), civil commotion(s), riot(s), accident(s), act(s) of God or other natural calamities or on account of any other act(s) beyond the control of the parties, the time of the delivery shall be extended by the period equal to the period of delay/constraints occasioned by one or more of the aforesaid Force Majeure conditions.

On the occurrence of any of the above Force Majeure conditions, the party concerned shall notify the other party in writing of such occurrence(s) within 10 days of Force Majeure stating therein (i) the date of occurrence(s) of Force Majeure disability, (ii) the nature of such Force Majeure disability, along with a chamber of commerce of the concerned state certifying the fact of the Force Majeure condition during the period.

In the event of the party invoking the Force Majeure condition(s), the purchaser shall have the option to cancel the contract for the reason of any or all of the Force Majeure conditions notified by the party without being liable to pay any compensation whatsoever to the party.

- 16.0 Sub-contracts:** The Party shall not assign or sub-contract in whole or in part the contract in any manner except with the prior approval of the SAIL.
- 17.0 Amendments:** No variation in or modification of the terms of the contract shall be made except by written amendment signed by the parties.
- 18.0 General Condition of Contract:** General Condition of Contract governing supply contracts, of Steel Authority of India Limited (**SAIL P-I**), shall apply to this contract except to the extent modified herein. SAIL-PI can be downloaded from the Tender Section of the SAIL website www.sail.co.in.
- 19.0 Compliance with all Laws:** The selected party shall be responsible and shall ensure compliance norms with all laws applicable. This will include inter-alia, rules, regulations, bye-laws and orders of the appropriate authorities and statutory bodies and may be enforced from time to time during the contract period.
- 20.0 Termination of Contract:** This contract may be terminated:
- By SAIL on non-completion of jobs and / or non-performance of required services effective upon ninety (90) days prior written notice, as appropriate, at any time during the term / extended term of the contract. The decision of SAIL in this regard shall be final and binding.
 - By either party, for material breach of the contract effective upon ninety (90) days written notice by the non-breaching party and the breaching party's failure to cure such Breach within the ninety (90) day notice period;
 - By either party upon the issuance of notice to the other party if the other party is adjudged insolvent or bankrupt, or the institution of any proceedings by or against the other party seeking relief, reorganization or arrangement under any laws relating to insolvency, or any assignment for the benefit of creditors, or the appointment of a receiver, liquidator or trustee of any of the other party's property or assets, or the liquidation, dissolution or winding up of the other party's business.
- 21.0 Exception to Tenders:** SAIL, in its sole discretion, unconditionally and without having to assign any reason, reserves to itself the right to accept or reject the lowest bid or any other tender or all the tenders. SAIL also reserves the right to accept any tender in full or in part.
- 22.0 LIMITATION OF LIABILITY:**
- Except in cases of criminal negligence or willful misconduct,
- (a) The Service provider shall not be liable to the Purchaser, whether in contract, tort or otherwise, for any indirect or consequential loss or damage, loss of use, loss of production, or loss of profits or interest costs and
 - (b) The aggregate liability of the Service provider to the Purchaser whether under the contract, in tort or otherwise including the cost of repairing or replacing defective equipment, shall not exceed 100% (one hundred percent) of the total contract price, provided that this limitation shall not apply to any obligation of the contractor to indemnify the buyer with respect to copyright, patent infringement etc.



**PROFORMA FOR BANK GUARANTEE FOR
PERFORMANCE GUARANTEE BOND (of Specified
Scheduled Bank at New Delhi/Delhi)***

To

Steel Authority of India Limited
C&IT, 19th Floor, Scope Minar, Laxmi Nagar
Delhi-110092

Bank Guarantee No.Dated

LETTER OF GUARANTEE

1. Whereas M/s (herein after referred to as the SELLER) and M/s. STEEL AUTHORITY OF INDIA LIMITED (hereinafter referred to as the PURCHASER) have entered into a Contract vide Purchase Order no..... dated (hereinafter called the said AGREEMENT) for Comprehensive Maintenance Contract for Server Systems (EPMS & PMS) at SAIL, Corporate office (hereinafter referred to as the Services) to the PURCHASER on the terms and conditions mentioned therein.

2. We,, New Delhi, at the request of the Seller,
(Name of the bank)

do hereby undertake and indemnify and keep indemnified the PURCHASER to the extent of RS..... against any loss or damage that may be caused to or suffered by the PURCHASER, by reason of any breach by the SELLER of any terms and conditions of the said contract and/or in the performance of the said CONTRACT by the SELLER. We agree that the decision of the PURCHASER as to whether any breach of any of the terms and conditions of the said CONTRACT or in the performance thereof has been committed by the SELLER and the amount of loss or damage that has been caused to or suffered by the PURCHASER shall be final and binding on us and the amount of the said loss or damage shall be paid by us forthwith to the PURCHASER on demand and without protest or demur.

3. We, New Delhi, hereby further agree that the guarantee
(Name of the bank)

herein contained shall remain in full force and effect during the period that would be taken for satisfactory performance and fulfillment in all respects of the said CONTRACT and that it shall continue to be enforceable for (a) 15 months from the date of start of Comprehensive Maintenance Contract of the Services or (b) in the event of any dispute(s) between the PURCHASER and the SELLER, until such period(s) the dispute is settled fully, whichever date is later, however not later than _____ and

that if any claim accrues or arises against us,, by
(name of the bank)

virtue of the GUARANTEE before the dates referred to at (a) and (b) herein above, the same shall be enforceable against us,, New Delhi
(name of the bank)

Notwithstanding the fact that the same is enforced after the dates referred to at (a) or (b) hereinabove, whichever date is later, provided that notice of any such claim has been given by the PURCHASER before the dates referred at (a) & (b) hereinabove, as the case may be. Payments under this LETTER OF GUARANTEE shall be made promptly upon our receiving the notice to that effect from the PURCHASER on demand and without protest or demur.

4. It is fully understood that this Guarantee shall become effective from the date of the said CONTRACT and that We,, New Delhi, undertake
not

(Name of the bank)

to revoke this Guarantee during its currency without the prior written consent of the PURCHASER.



5. We, New Delhi, hereby further agree that the
(Name of the bank)

PURCHASER shall have the fullest liberty, without affecting in any manner our obligations herein under, to any of the terms and conditions of the said CONTRACT or to extend the time of performance of the said CONTRACT by the SELLER from time to time any of the powers exercisable by the PURCHASER against the SELLER and to forbear or to enforce any of the terms and conditions relating to the said CONTRACT and We,,

(name of the bank)

New Delhi, shall not be released from our liability under this Guarantee by reason of any such variation or extension being granted to the SELLER or any forbearance and/or omission on the part of the PURCHASER or by any other matter or thing whatsoever which under the law relating to sureties would, but for this provision, have the effect of so releasing us from our liability under this Guarantee.

6. We, New Delhi, hereby further agree that the Guarantee
(Name of the bank)

herein contained is initially valid up to.....and the same shall be extended further according to the provisions contained herein above.

7. We, New Delhi, hereby further agree that the Guarantee
(Name of the bank)

herein contained shall not be affected by any change in the constitution of the SELLER and/or the PURCHASER.

FOR AND ON BEHALF OF

(name of the bank)

New Delhi

Signature:

Name:

DULY CONSTITUTED ATTORNEY &
AUTHORISED SIGNATORY

Designation:

(name of the bank)

Address:

Dated :-

*List of Specified Scheduled Banks at New Delhi/Delhi given at next Page.

Scheduled Commercial Banks (except Co-operative & Gramin Banks) at New Delhi / Delhi & enforceable at New Delhi / Delhi are:-

Axis Bank	ICICI Bank Ltd.	Punjab National Bank
Bank of India	I D B I Bank	State Bank of Hyderabad
Canara Bank	IndusInd Bank	State Bank of India
Corporation Bank	Jammu & Kashmir Bank	Vijaya Bank
HDFC Bank	Kotak Mahindra Bank	YES Bank



Annexure VI

Proforma for submitting Bank Guarantee towards Earnest Money Deposit (EMD)

To,
Steel Authority of India Limited
New Delhi

Bank Guarantee No: _____ Date: __/__/____

Letter of Guarantee

WHEREAS Steel Authority of India Limited (hereinafter referred to as SAIL) has invited bids vide NIT No. **SAIL/C&IT/RFQ/CMC/SERVERS/2018 dated 27/07/2018** (hereinafter referred to as the said Invitation to Bid) for **Comprehensive Maintenance Contract (CMC) for Server Systems (EPMS & PMS) at SAIL Corporate Office New Delhi.**

The said invitation to tender requires that any eligible tenderer wishing to make an offer in response thereto shall establish an irrevocable Earnest Money Deposit (Bid Bond) in favour of SAIL, New Delhi in the form of Bank Guarantee for an amount of **Rs 15,000/- (Rs Fifteen Thousand only)** valid upto __/__/____ as a guarantee that the tenderer: -

(a) Shall keep his offer firm and valid for acceptance by SAIL/New Delhi upto __/__/____.

(b) And whereas, M/s __<name of tenderer>__ (hereinafter referred to as the said Tenderer) wish to make an offer in response to the said invitation to tender for **Comprehensive Maintenance Contract (CMC) for Server Systems (EPMS & PMS) at SAIL Corporate Office New Delhi.**

Now this bank hereby guarantees that in the event of the said Tenderer failing to abide by any of the conditions referred to in any of the preceding paragraphs, this bank shall pay to SAIL, New Delhi on demand, without SAIL having to substantiate its demand, and without protest or demur **Rs.15,000=00 (Rs Fifteen Thousand only)**. This bank further agrees that the decision of SAIL, New Delhi as to whether the said tenderer has committed a breach of any of the conditions referred to in the preceding paragraphs, shall be final and binding.

This bank further undertakes that this Guarantee can be operable from New Delhi and shall remain irrevocably valid and in force initially up to __/__/____ and the same shall be extended further according to the provisions contained therein above.

For and on behalf of (Name of the Bank)
Duly constituted attorney and authorised signatory

Signature: _____

Name: _____

Designation: _____

Name and address of Bank:

Definition of Key Terms – Reverse Auction

Reverse Auction

Reverse Auction refers to a forum where the requirement for one/more Markets of an item is stated and the participants are required to bid down the price to be selected to supply the requirement.

On-line Reverse Auctions

On-line Reverse Auctions refer to those Reverse Auctions conducted through the Internet with simultaneous bidding (from one or more locations). In other words, the venue for the auction is on an Internet website/ platform. The Mjunction website (<http://buyjunction.in>) or any other URL assigned by Mjunction would constitute the venue for the purpose of the On-line auction.

Award at the Reverse Auction

The bidder quoting the lowest price is normally allotted the item unless otherwise specified by the Client.

Client

Client is the individual/business entity who has contracted Mjunction to conduct such Reverse Auction. In case of Reverse Auction, the purpose would be to meet their requirement for item/s from among the sellers desiring to sell the items to the Client.

Bidder

Bidder is the individual/business entity participating in the Reverse Auction, intending to supply the item/s to the Client. To become a Bidder in the auction, a business entity has to secure client approval for participation and also provide written assent to the General Rules and Regulations

Auction Engine

Auction Engine refers to the software that encapsulates the entire auction environment, processing logic and information flows. Mjunction is the sole owner of the auction engine and retains exclusive right over the utilisation of the same.

Preview Time

Preview Time refers to the period of time that is provided prior to the commencement of bidding. This is to facilitate approved participants to view the auction details such as item specifications, bidding details and bidding rules. The purpose is also to familiarize participants with the functionalities and screens of the auction mechanism. It is not mandatory for Mjunction to provide Preview Time.

Start Time

Start time refers to the time of commencement of the conduct of the On-line auction. It signals the commencement of the Price Discovery process through competitive bidding.

Duration of the Reverse Auction

It refers to the length of time the price discovery process is allowed to continue by accepting bids from competing bidders. The duration of the auction would normally be for a pre-specified period



of time. However, the bidding rules may state the conditions when the pre-specified duration may be extended/ curtailed.

The conditions include:

Curtailement of auction duration in the event of no bids for a specified period of time (Inactivity Time). Automatic extension in the event of bids being entered towards the end of the scheduled duration to facilitate the other bidders to view and react to the bid.

Auto Extension of the Auction Timings

In the event of bids in the last few minutes of the scheduled bid time, the Bid Timings are automatically extended for a specified period from each such bid. Such Auto Extension shall continue until no bids are placed for the specified period (Engine remains inactive for the specified period). The Inactivity Time for Auto Extension purpose is normally 5 minutes. Mjunction however retains the right to change the same. The Inactivity Time applicable for the particular On-line Bid shall be communicated to the bidder if it will be set to a value less than 5 minutes.

End of the Reverse Auction

End of the Auction refers to the termination of the auction proceedings signaling an end to the price discovery process.

Auction Report

Mjunction would provide an Auction Report to the Client containing a summary of the auction proceedings and outcome. The Auction Report would constitute the official communication from Mjunction to the client about the outcome of the Reverse Auction.

ID and Pass Word - Pass Word and ID shall be given to all the eligible suppliers by the Service Provider for enabling them to participate in the Reverse Auction.

Start –Bid Price – Start Bid Price is the estimated Price of a lot decided by Steel Authority of India Limited. This is the Maximum Price, which will be accepted by the Reverse Auction engine. Supplier have to quote a price lesser than the Start Bid Price for participating in the Reverse Auction. The computer shall not accept Price higher than Start Bid Price for a lot. Bidding will start at start Bid Price to be intimated in advance to the vendors eligible for bidding. This will be put up on the site.

Minimum Decrement- Minimum decrement is the minimum amount a supplier has to reduce in order to beat a higher bid. For example if a bidder bids Rs 10,00,000/- for a Market, others, in order to beat this bid, have to quote a lower price with a minimum decrement say of Rs 2,500/- i.e. in order to be eligible they have to quote Rs. 9,97,500/- (or lower) for the same Market. This minimum decrement shall be pre-decided by Steel Authority of India Limited and will be in- built in the computer.

Annexure-VIII**General Rules and Regulations governing conduct of On-line Reverse Auctions on the MJUNCTION platform and Terms and Conditions of the Buyer (SAIL)**

INTRODUCTION

The General Rules and Regulations provided herein govern the conduct of On-line Reverse Auctions operated by Mjunction Services Ltd. These rules cover the roles and responsibilities of the parties in the On-line Reverse Auctions on the Mjunction platform. Acceptance in-toto to these General Rules and Regulations is a pre-requisite for securing participation in the On-line Reverse Auctions on the Mjunction platform.

Role of Mjunction :-

Mjunction is the agency (operator) primarily providing the forum for conducting the Reverse Auction. As the agency providing the auction engine, the role of Mjunction would include:

- Input of the details of the auction items and defining of the bidding rules as desired by the client, market making and training of prospective vendors
- Providing access to the approved suppliers to participate in the auction.
- Enhancing bidder awareness and comfort with the auction mechanism and bidding rules
- Summarizing of the auction proceedings & communicate the outcome to the Client
- The responsibility for fulfillment of the contract rests between the bidder and the client, and Mjunction shall have no liability on this account.

Role of the Bidder :-

The role of the bidder is outlined below:

- The bidder would participate in the Reverse Auction with the aim of bidding to secure the auctioned item in the auction (being selected for supplying the client's requirement in a Reverse Auction).
- The bidder would be provided access to the Auction through a User Id protected by a password. The bidder needs to ensure that the User Id and password is not revealed to unauthorized persons.
- Access to the auction mechanism shall be provided to all the approved bidder subsequent to obtaining their online consent to the General Rules & Regulations.
- In the event of winning an allotment in the auction mechanism, the bidder shall commit to fulfill outlined obligations under the contract.

Bidding Rules:

The Bidding Rules refer to the information and terms defined specifically for a particular Reverse Auction. The purpose of the Bidding rules is to provide approved bidder with the information and terms specific to the auction in which they are bidding. This would include:

- Start Time and duration of the Reverse Auction
- Any extension of the duration of the auction in the event of bids being received towards the end of the pre-specified duration
- Reserve Price (if specified)
- Minimum & Maximum Bidding Quantity (if specified)
- Price Decrements and any reduction in the price decrements in the auction in the event of inactivity
- Other attributes (informational/non-negotiable in nature)
- Participation in the auction process presumes complete awareness and understanding of the bidding rules.

Conduct of the Reverse Auction :-

The Reverse Auction shall be communicated on pre-specified date.

Mjunction retains the right to cancel or reschedule the Reverse Auction on any of the followings reasons:

- The number of confirmed bidders is deemed to be insufficient to conduct the Reverse Auction
- Some of the confirmed bidders are unable to access the module due to infrastructural problems such as sustained power failure or telecommunication breakdown.
- Bids are received but above the Start Bid Price, or
- It is determined that one or more bidders have submitted bids which are clearly below Cost.

The duration of the auction may also vary from the pre-specified period of time on account of termination of the auction by Mjunction:

- on the advice of the client or
- on its own accord in case of situations where it is felt that continuance of the auction proceedings is prejudicial to the smooth conduct and/or the integrity of the auction process.

Problems during the conduct of the Reverse Auction :-

In the event of any problems being faced in the smooth conduct of the auction, Mjunction shall have the right to undertake one or more of the following steps:

- Cancellation of a bid
- Locking of a bidder's account (suspension of operations in the account) etc.

Such intervention may also happen without seeking prior concurrence of the client.

A brief description of Reverse Auction :--

The reverse auction is broadly of the following two types :-- Price bidding and Rank bidding.

Price Bidding :-- In price bidding techno-commercially eligible suppliers will require to put their price. In turn they will see the current market price only. They have to bid below the current market price in a pre-specified decrement to become L1 bidder. As they have to bid below the current market price no two bids can be equal except in the case of proxy bidding (explained below). The auction will close as per the time schedule taking due care of auto-extension mechanism and the lowest bidder will get the market at the quoted price.

Proxy Bidding :--

Any bidder can activate a “proxy” during auction. By activating the proxy, the bidder actually authorises the system to take care of his bidding for a specified range set by the bidder. Within that specified range system will put a bid of one decrement lower than the current market price on behalf of the bidder. In case of tie, the bidder who has activated proxy or the bidder who has activated proxy first (in case of multiple proxy activation) will be declared as winner of the market or auction. In case of “proxy” activation bidders will get the market at the closing price of the auction (within specified range), no matter what is the range set by them. The proxy range is captured by the system/software and can’t be accessible to anybody.

Rank Bidding :--

In this type of auction techno-commercially eligible bidders will require to put their price, in turn they will get the rank depending upon their bid. No market price will be available for bidders. The bidders will have to revise his previous bid by a pre-specified decrement value in order to improve their rank. As no market price is available to the bidders and they have to revise their own bid only there is a possibility of getting bids of same value by more than one bidders in the system. Depending upon the time of bid placement bidders will get their rank i.e. bidder who bid first will get precedence. However the same bid by two bidders is applicable for rank other than L1. For L1 position only the first L1 bid received in the system will remain and the other bidders will get a remark “rejected” and the reason there of. They can obviously revise their bid and get the rank appropriate with the bid value.

In rank bidding there is no provision for “proxy” activation as the bidder will not lowering the current market price, hence the range for “proxy” can’t be set.

**Basic Information About The Tenderer**

1. Company Name :
2. Ownership details :
3. Status of the company (Limited, PSU, SSI etc.)* :
4. PAN Number * :
5. GST Registration No. * :
6. Bank Account Details:
 - a) Name of the Account Holder:
 - b) Name of the Bank
 - c) Branch Address
 - d) 9-Digit MICR Code
 - e) Account Type - (S.B., Current A/c, Cash Credit A/c etc.)
 - f) IFSC -
7. Contact person Name, Designation, address, phone no. , fax no. &E-Mail ID:
8. Applicable taxes (with rates) :

9. Financial details of the company:

Financial Year	Turnover (Rs in Crs.)	Profit/ Loss (Rs.in Crs.)
2014-15		
2015-16		
2016-17		

10. Current / Major Client List:

S. No.	Name of the client	Services Provided. (Attach copies of CMC/AMC)

We hereby certify that all information provided above is correct and true to the best of my knowledge.

Signature

Name

SEAL:

‘*’ Duly self certified copies of documentary evidence of the above to be submitted alongwith tender.



Form -II

Declaration for Acceptance of Scope of Work

We, M/s.....
.....having
the registered office at
.....agree to
all the Scope of Work of the NIT No. SAIL/C&IT/RFQ/CMC/SERVERS/2018 dated
27/07/2018, issued by SAIL for **Comprehensive Maintenance Contract (CMC) for Server
Systems (EPMS & PMS) at SAIL Corporate Office New Delhi.**

Date

**Signature
Name
Company Name & Seal of
authorized person**



**Declaration for Acceptance of Techno-Commercial Terms
& Conditions**

We, M/s
.....having
the registered office at
.....agree to
all the Techno-Commercial Terms & Conditions of the Request For NIT
No.SAIL/C&IT/RFQ/CMC/SERVERS/2018 dated 27/07/2018, issued by SAIL for
**Comprehensive Maintenance Contract (CMC) for Server Systems (EPMS & PMS) at
SAIL Corporate Office New Delhi-3.**

Our offer will remain valid for 60 days from the date of opening of the Tenders.

Date

Signature
Name
Company Name & Seal of
authorized person



FORM IV

STATEMENT OF DEVIATION FROM SPECIFICATIONS AND BID TERMS

The following are the particulars of deviations from the requirements of the bidding terms and conditions:

CLAUSE/PARA	DEVIATION	REMARKS (including justification)
-------------	-----------	--------------------------------------

We, hereby, declare that there are no deviations from the tender terms and conditions other than those mentioned above.

Dated -

Signature and seal of
the Tenderer

NOTE: Where there is no deviation, the statement should be returned duly signed with an endorsement indicating "No Deviations"



FORM-VA

FORM –V A

(To be submitted on Service provider's Letter Head)

Format for Acceptance of General Terms & Conditions, Commercial Terms and all other Terms of the Reverse Auction

We _____
(Service provider Name)
having registered office at _____
(Address)
agree to all the Commercial, General & other Terms & Conditions listed in the
NIT No. SAIL/C&IT/RFQ/CMC/SERVERS/2018 dated _____ or

Comprehensive Maintenance Contract (CMC) for Server Systems (EPMS & PMS) at SAIL Corporate Office New Delhi.through Reverse Auction.

We confirm that we are in a position to provide Comprehensive Maintenance Service (CMC) for EPMS and PMS server systems **as per details** given in RFQ. We have also understood the Reverse Auction Process and the Reverse Auction rules and special instructions given in the RFQ. We agree to participate in the Reverse Auction and abide by the rules.

We nominate an executive, whose details are given below, to put the bids on our behalf.

The details of the person authorized to bid on our behalf is as follows.

Name & Designation :

E-mail ID :

Contact phone nos. :

Address :

(Signature & Seal)

Place :

Date :



FORM V B

FORM-V B

Format for submitting last quoted prices

(To be submitted on Company Letter Head of the Tenderer)

(To be sent within 30 mins of conclusion of the Reverse Auction)

To,
mjunction services limited
1st Floor, Tata Centre
43, Jawaharlal Nehru Road
Kolkata – 700 071

Fax: 033 – 2288 3279

Ref: Reverse Auction for providing Comprehensive Maintenance Contract (CMC) for Server Systems (EPMS & PMS) at SAIL Corporate Office New Delhi to SAIL held on

Reference above, we hereby confirm our last quoted prices in the Reverse Auction held on for providing **Comprehensive Maintenance Contract (CMC) for Server Systems (EPMS & PMS) at SAIL Corporate Office New Delhi..**

Item	Last Quoted Price
CMC Charges (All-inclusive cost basis) for EPMS and PMS server systems	

- Net of ITC

We also confirm that we will submit price break-up, *within two hours* from the date of Reverse Auction.

Signature :

Name :

Designation :

Date :



PROFORMA FOR PRICE BID

Sl. No.	Equipment Description	HSN Code	Unit of Measurement (UoM)	Qty.	Unit Price (₹)	Total Price (₹)	Taxes / Duties with nature & rate (₹)						Amount (₹)
						Qty x Unit Price (B * C)	CGST		SGST or UTGST as applicable		IGST		
							Rate %	Amount (₹)	Rate %	Amount (₹)	Rate %	Amount (₹)	
(1)	(A)	(2)	(3)	(B)	(C)	(D)		(E)		(F)		(G)	(D+E+F) or (D+G)
A	<u>Comprehensive Maintenance of EPMS System</u> <i>(Equipment details given in Annexure IIIC (items1-16))</i>		Quarterly	4 Quarter									
B	<u>Comprehensive Maintenance of PMS System</u> <i>(Equipment details given in Annexure IIIC (items 17-23))</i>		Quarterly	4 Quarter									
1	Total Price for one year in figures & words.												
2	Input Tax Credit (ITC)												
TOTAL Price (Net of ITC) [(1) minus(-) (2)]													

- Interstate/Intrastate GST as applicable , to be indicated in the relevant column above.
- Evaluation of price bids and ranking of offers would be based on total price quoted [Net of ITC Credit].

Date : Signature, Company Name & Seal of authorized person

**PROFORMA FOR UNPRICE BID**

Sl. No.	Equipment Description	HSN Code	Unit of Measurement (UoM)	Qty.	Unit Price (₹)	Total Price (₹)	Taxes / Duties with nature & rate (₹)						Amount (₹)
						Qty x Unit Price (B * C)	CGST		SGST or UTGST as applicable		IGST		
							Rate %	Amount (₹)	Rate %	Amount (₹)	Rate %	Amount (₹)	
(1)	(A)	(2)	(3)	(B)	(C)	(D)		(E)		(F)		(G)	(D+E+F) or (D+G)
A	<u>Comprehensive Maintenance of EPMS System</u> <i>(Equipment details given in Annexure IIIC (items1-16))</i>		Quarterly	4									
B	<u>Comprehensive Maintenance of PMS System</u> <i>(Equipment details given in Annexure IIIC (items 17-23))</i>		Quarterly	4									
1	Total Price for one year in figures & words.												
2	Input Tax Credit (ITC)												
TOTAL Price (Net of ITC) [(1) minus(-) (2)]													

1. Interstate/Intrastate GST as applicable, to be indicated in the relevant column above.
2. Evaluation of price bids and ranking of offers would be based on total price quoted [Net of ITC Credit].

Date : Signature, Company Name & Seal of authorized person